ANNEXURE – 3

CONDITIONS OF PARTICULAR APPLICATION

1. ORDER OF PRECEDENCE

The Conditions of Particular Application (Annexure – 3) shall be read in conjunction with General Conditions of Contract (Annexure – 3), specification, drawings and or any other document forming part of the contract. In respect of terms and conditions not explicitly provided in this special terms and condition, provisions of general conditions of contract are applicable.

These Conditions of Particular Application supplement the conditions of RFP document/Contract and General Conditions of Contract .Where the provision of Condition of Particular Application are at variance with the General Conditions of contracts and other documents mentioned above, the Condition of Particular Application shall prevail.

2. INSURANCE

Unless otherwise specified in this Contract, the NOMINATED SUBCONTRACTOR shall, at its sole expense, maintain in effect at all times during the performance of the Work, insurance policies and coverage within limits to safeguard NOMINATED SUBCONTRACTOR's plant, machinery, equipment's and other belongings from any damage, theft, etc.

Contractors All Risk Insurance (CAR) policy for this project has already been procured.

A. <u>NOMINATED SUBCONTRACTOR's Furnished Insurance:</u>

1. Transit insurance:

   NOMINATED SUBCONTRACTOR's shall fully insure all the supplies required for execution of the works within the scope of this Contract for "Designing, Providing, fabricating & fixing Motorised GI Rolling Shutter Works at Public Parking Lot with all the materials and labour etc. complete in all respect at Salsette - 27 Project, Byculla, Mumbai" against the loss or damage incidental to transportation, storage and delivery. Prices specified in Schedule of Quantities and Prices – Annexure- 4 of this Work Order are inclusive of transit insurance charges.

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The NOMINATED SUBCONTRACTOR shall take any other Insurance Policies that deemed necessary for performance of his scope of works including but not limited to materials, plants, equipment, tools, tackles etc. NOMINATED SUBCONTRCTOR shall be responsible for any liability which may not be covered by the insurance policies referred to above and also for all other damages arising in respect of this Contract.

B. Related Obligations:

1. All insurances maintained by NOMINATED SUBCONTRACTOR shall include GENERAL CONTRACTOR as additional named insured and shall in any event cause the insurers or underwriters to waive the rights of subrogation against the GENERAL CONTRACTOR or their parents, affiliates, agents or subsidiaries, contractors, subcontractors, Engineer, licensors, or vendors carrying out Work at the Jobsite.

2. The requirements contained herein as to types and limits, as well as GENERAL CONTRACTOR's approval of insurance coverage to be maintained by NOMINATED SUBCONTRACTOR, are not intended to and shall not in any manner limit or qualify the liabilities and obligations assumed by NOMINATED SUBCONTRACTOR under this Contract.

3. The certificates of insurance must provide clear evidence that NOMINATED SUBCONTRACTOR's insurance Policies contain the minimum limits of coverage and the special provisions prescribed in this clause.

4. In the event that NOMINATED SUBCONTRACTOR fails to comply with the conditions imposed by the insurance policies affected pursuant to this Contract, the NOMINATED SUBCONTRACTOR shall indemnify the GENERAL CONTRACTOR against all losses and claims arising from such failure. Notwithstanding anything to the contrary contained herein, the GENERAL CONTRACTOR shall, in such event, be entitled to terminate this Contract, in accordance with the provisions contained herein.

5. All the deductibles from the insurance proceeds shall be the responsibility of the NOMINATED SUBCONTRACTOR, if the insurance claim results from the act, omission or default of the NOMINATED SUBCONTRACTOR.

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C. Notifications:

In accordance with the submittal requirements outlined above, NOMINATED SUBCONTRACTOR shall deliver the one (1) copy of the Certificate(s) of Insurance required by this clause and all subsequent notices of cancellation, termination and alteration of such policies to:

L&T - Construction – Peninsula's Salsette 27 Project Site,
The New Great Eastern Mills, Dr Ambedkar Road, Near Rani Baug, Byculla, Mumbai–400027

Attn: Mr. Satish PR (Project Manager-L&T Construction)
Reference: Designing, Providing, fabricating & fixing Motorised GI Rolling Shutter Works at Public Parking Lot at Salsette 27, Mumbai

3. GENERAL CONTRACTOR FURNISHED DRAWINGS AND SPECIFICATIONS

The NOMINATED SUBCONTRACTOR shall perform Work only in accordance with all drawings and specifications listed in Annexure – 4 - Schedule of Quantities and Prices and Annexure – 7 - Drawings, with changes thereto intimated by the GENERAL CONTRACTOR from time to time.

4. GENERAL CONTRACTOR-FURNISHED UTILITIES AND FACILITIES

Utilities and Facilities to be provided to the NOMINATED SUBCONTRCTOR are more particularly set out in the Responsibility Matrix (Annexure – 3A)

Prior approval for layouts for power, water, labour camp, store, etc. from GENERAL CONTRACTOR's is compulsory.

After completion of all work or at the notice of GENERAL CONTRACTOR, NOMINATED SUBCONTRACTOR shall remove all materials and equipment's used for such extension of power, water, labour camp, etc.

5. GENERAL CONTRACTOR-FURNISHED MATERIALS AND EQUIPMENT:

a. **GENERAL CONTRACTOR FURNISHED MATERIALS: Not Applicable**

GENERAL CONTRACTOR will furnish to NOMINATED SUBCONTRACTOR, at GENERAL CONTRACTOR's designated warehouse or Jobsite storage area, the items listed below to be incorporated into or used in performance of the Work under this contract.

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List of Items with permissible wastage: Not Applicable

Such items will be furnished, without cost to NOMINATED SUBCONTRACTOR, provided that NOMINATED SUBCONTRACTOR shall, at its expense, accept delivery thereof, load, unload, transport to points of use, and care for such items until final disposition thereof. At time of acceptance of any such item from GENERAL CONTRACTOR, NOMINATED SUBCONTRACTOR shall sign a receipt therefore. Signing of such receipt without reservation therein shall preclude any subsequent claim by NOMINATED SUBCONTRACTOR that any such items were received from GENERAL CONTRACTOR in a damaged condition and with shortages. If at any time after acceptance of any such item from GENERAL CONTRACTOR any such item is damaged, lost, stolen or destroyed, such item shall be repaired or replaced at the expense of NOMINATED SUBCONTRACTOR. Items required to be replaced may, at its option, be furnished by GENERAL CONTRACTOR. Upon completion of all the Work under this contract, NOMINATED SUBCONTRACTOR shall, at its expense, return all surplus and unused items to GENERAL CONTRACTOR's designated warehouse or Jobsite storage area. Material reconciliation and permitted wastage for GENERAL CONTRACTOR furnished material shall be as defined in Annexure – 3 of this Contract, if any.

GENERAL CONTRACTOR will exert every reasonable effort to make delivery of such materials and equipment so as to avoid delay in the progress of the Work. However, should GENERAL CONTRACTOR, for any reason, fail to make delivery of any such item and a delay result the provisions of the General Condition titled "CHANGES" apply. NOMINATED SUBCONTRACTOR shall take all appropriate action to mitigate the consequences of such delay.

b. GENERAL CONTRACTOR FURNISHED EQUIPMENT EQUIPMENTS:

Equipment's and plants available with GENERAL CONTRACTOR shall be utilized by NOMINATED SUBCONTRACTOR, however timing for usage of same shall be mutually agreed.

Specialized plant and equipment required, if any, under the awarded scope of work to NOMINATED SUBCONTRACTOR shall be managed by NOMINATED SUBCONTRACTOR at his own cost.

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Intimation for use of GENERAL CONTRACTOR's equipment shall be provided well in Advance by NOMINATED SUBCONTRACTOR and the same shall be utilised for specific period agreed between GENERAL CONTRACTOR and NOMINATED SUBCONTRACTOR.

6. GENERAL CONTRACTOR FURNISHED PERMITS

The General Condition titled "PERMITS" notwithstanding, GENERAL CONTRACTOR will without cost to NOMINATED SUBCONTRACTOR, furnish the permits listed below; however, NOMINATED SUBCONTRACTOR shall, as necessary, provide GENERAL CONTRACTOR with assistance in obtaining such permits. NOMINATED SUBCONTRACTOR shall, in accordance with said General Condition titled "PERMITS," provide all other permits. All such GENERAL CONTRACTOR -furnished permits are available for examination at the project office of GENERAL CONTRACTOR during regular business hours.

7. SITE ACCESS

Preparation and maintenance of approaches to working areas, adequate lighting in common areas, wherever required, for execution of the work, shall be the responsibility of the GENERAL CONTRACTOR.

NOMINATED SUBCONTRACTOR shall be liable for making approaches if required for carrying out awarded scope, adequate lighting at work place and all temporary works required for carrying out work within defined safety and quality guidelines work, all costs towards the same is deemed included in the agreed prices.

8. NOMINATED SUBCONTRACTOR-FURNISHED DRAWINGS, DATA SAMPLES, CLOSE-OUT DELIVERABLES, O&M MANUALS

NOMINATED SUBCONTRACTOR shall prepare its design, drawings and specifications using the Contract Documents as a basis. NOMINATED SUBCONTRACTOR's design, drawings and specifications shall be submitted for GENERAL CONTRACTOR's review in such a scheduled manner so as to permit no less than Thirty (30) days for review by GENERAL CONTRACTOR.

GENERAL CONTRACTOR will review the preliminary design as it is complete and transmit its comments and instructions to the NOMINATED SUBCONTRACTOR. NOMINATED SUBCONTRACTOR shall incorporate these comments and instructions into its submittal at

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the Final Design stage. Any changes that occur to drawings previously reviewed by GENERAL CONTRACTOR shall be reflected in revised drawings and shall be resubmitted to GENERAL CONTRACTOR for review.

GENERAL CONTRACTOR or Consultant/Engineer review and permission to proceed does not constitute acceptance or approval of submittals including, but not limited to, design details, calculations, analyses, test methods, construction methods, rigging plans, certificates or materials developed or selected by NOMINATED SUBCONTRACTOR and does not relieve NOMINATED SUBCONTRACTOR from full compliance with the provisions contained herein.

A. Drawings

Where drawings are required for:

(i) Fabrication of NOMINATED SUBCONTRACTOR-furnished equipment or materials,

(ii) Installing NOMINATED SUBCONTRACTOR-furnished equipment or materials, or

(iii) Planning and performance of the Work under this contract;

Such drawings One (1) reproducible copy and Five (5) prints of each drawing shall be submitted by and at the expense of NOMINATED SUBCONTRACTOR before fabrication, installation or performance is commenced, allowing at least thirty (30) days for review unless otherwise shown on the Contract Schedule. Such drawings shall include, but not be limited to, match marks, erection diagrams and other details, such as field connections for proper installation, erection of equipment or materials, and performance of the Work.

Drawings of a specific piece of equipment shall identify components with the manufacturer's part number or reference drawing number clearly indicated. If reference drawing numbers are used, the review data of such drawings shall be included.

Drawings shall indicate design dimensions, maximum and minimum allowable operating tolerances on all major wear fits, e.g., rotating, reciprocating or intermittent sliding fits between shafts or stems and seals, guides and pivot pins. The sequence of submission of all drawings shall be such that all information is available for reviewing each drawing when it is received.

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All drawings submitted by NOMINATED SUBCONTRACTOR shall be certified by NOMINATED SUBCONTRACTOR to be correct, shall show the contract number and shall be furnished in accordance with the contract Drawings and Data Requirements Form(s), GENERAL CONTRACTOR will conduct a review of NOMINATED SUBCONTRACTOR's drawings and a reproducible drawing marked with one of the following codes will be returned to NOMINATED SUBCONTRACTOR.

Code	Notation
1.	Work may proceed.
2.	Revise and Resubmit. Work may proceed subject to resolution of indicated comments.
3.	Revise and Resubmit. Work may not proceed.
4.	Review not required. Work may proceed.

Although work may proceed on receipt of a drawing with a Code 2 notation, NOMINATED SUBCONTRACTOR must resolve the comments indicated, resubmit and obtain a Code 1 notation before release for shipment or completion of the affected work.

B. Samples

Where samples are required, they shall be submitted by and at the expense of NOMINATED SUBCONTRACTOR. Such submittals shall be made in advance allowing at least thirty (30) days for review unless otherwise shown on the Contract Schedule. Samples shall be subject to review and materials represented by such samples shall not be manufactured, delivered to the Jobsite or incorporated into the Work without such review.

Each sample shall bear a label showing NOMINATED SUBCONTRACTOR's name, Project name, contract number, name of the item, manufacturer's name, brand name, model number, supplier's name, and reference to the appropriate drawing number, technical specification section and paragraph number, all as applicable.

Samples, which have been reviewed, may, at GENERAL CONTRACTOR’s option, be returned to NOMINATED SUBCONTRACTOR for incorporation into the Work.

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C. Certificates and Data

Where certificates including those specified in sub-clause E of this Clause (are required to be submitted by the NOMINATED SUBCONTRACTOR , Five (5) copies of each such certificate shall be submitted by and at the expense of NOMINATED SUBCONTRACTOR. Such submittal shall be made not less than thirty (30) days prior to the time that the materials represented by such certificates are needed for incorporation into the Work. Certificates shall be subject to review and material represented by such certificates shall not be fabricated, delivered to the Jobsite or incorporated into the Work without such review.

Certificates shall clearly identify the material being certified and shall include but not be limited to providing the following information: NOMINATED SUBCONTRACTOR's name, Project name, contract number, name of the item, manufacturer's name, and reference to the appropriate drawing, technical specification section and paragraph number, all as applicable.

All other data shall be submitted as required by the Contract Documents.

D. As-Built Drawings and Specifications

1. Drawings:

a. Progress As-Builts. During construction, NOMINATED SUBCONTRACTOR shall keep a marked-up-to-date set of As-built blueline drawings on the Jobsite as an accurate record of all deviations between work as shown and work as installed. These drawings shall be available to, GENERAL CONTRACTOR for inspection at any time during regular business hours.

b. Final As-Builts. NOMINATED SUBCONTRACTOR shall at its expense and not later than thirty (30) days after Final Acceptance and before Final Payment furnish to GENERAL CONTRACTOR a complete set of marked-up As-built reproducible drawings with "AS-BUILT" clearly printed on each sheet. NOMINATED SUBCONTRACTOR shall accurately and neatly transfer all deviations from progress As-builts to final As-builts. As-built drawings shall be provided where specified and as required to reflect As-built conditions. NOMINATED SUBCONTRACTOR will provide one (1) copy of the As-built drawings in fully editable electronic format along with Three (3) printed copies in a form acceptable to the GENERAL CONTRACTOR.

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2. Specifications

a. Progress As-Builts. During construction, NOMINATED SUBCONTRACTOR shall keep a marked-up-to-date set of As-built specifications on the Jobsite annotated to clearly indicate all substitutions that are incorporated into the Work. Where selection of more than one product is specified, annotation shall show which product was installed. These specifications shall be available to, GENERAL CONTRACTOR for inspection at any time during regular business hours.

b. Final As-Builts. NOMINATED SUBCONTRACTOR shall at its expense and not later than thirty (30) days after Final Acceptance and before Final Payment – furnish to GENERAL CONTRACTOR a complete set of marked-up As-built specifications with "AS-BUILT" clearly printed on the cover. NOMINATED SUBCONTRACTOR shall accurately and neatly transfer all annotations from progress As-builts to final As-builts. NOMINATED SUBCONTRACTOR will provide one (1) copy of the As-built drawings in a fully editable electronic format along with Three (3) printed copies in a form acceptable to the GENERAL CONTRACTOR.

3. Endorsement:

NOMINATED SUBCONTRACTOR shall sign each final As-built drawing and the cover of the As-built specifications and shall note thereon that the recording of deviations and annotations is complete and accurate.

E. Closeout Deliverables:

The NOMINATED SUBCONTRACTOR shall submit to the GENERAL CONTRACTOR, the following documents, as applicable, upon completion of the Work and before issuance of Final Bill.

i. Warranty for equipment, components etc.
ii. Test Certificate for motors, microprocessor panels, electricity panels, brakes, steel wire ropes and other equipments.
iii. History sheets of the equipment.
iv. Catalogues.
v. Operation and Maintenance manuals as per paragraph “F” below.
vi. Log Book.
vii. List of tools and tackles.

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viii. List of recommended spares and consumables.

ix. Manufacturer's certification for proper installation as per manufacturer's installation manual

x. Reconciliation statement.

xi. All approvals and sanctions.

xii. As Built Drawings.

xiii. Provide tools as required by the Specifications.

xiv. Perform all tagging, labeling and signage as specified.

The NOMINATED SUBCONTRACTOR shall not be issued Final Acceptance Certificate till the time the NOMINATED SUBCONTRACTOR submit complete sets of the above mentioned deliverables, as applicable.

F. Operation and Maintenance Manuals:

a. All manuals shall be written in English language.

b. The NOMINATED SUBCONTRACTOR shall submit to the GENERAL CONTRACTOR draft copies of comprehensive operating and maintenance manuals, maintenance schedule and log sheets for all systems and equipment included in this Contract six weeks before handover of the relevant Work.

c. The manuals shall contain basis of design, detailed technical data and drawings for each equipment as installed, the erection, testing, operation and maintenance procedures, spare parts manual and recommended spares for 3 (three) year period of maintenance of each equipment.

d. The NOMINATED SUBCONTRACTOR shall also submit the preventive maintenance schedule for the equipment supplied.

e. The NOMINATED SUBCONTRACTOR shall also submit operation & maintenance manual for all equipment / operations etc. (incorporating comments, if any, of the GENERAL CONTRACTOR) complete in all respects

G. Obtaining Clearances / Certificates from Authorities:

The NOMINATED SUBCONTRACTOR shall be fully responsible and shall obtain all permits, fees, tests and sign-off required for carrying out Works like, but not limited to, Electrical Works, Civil Works, Fabrication Works, etc. at its own cost.

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9. COMMENCEMENT, PROGRESS AND COMPLETION OF THE WORK

NOMINATED SUBCONTRACTOR shall complete the Work under this contract to meet the following Contract Milestone dates:

Sr. No.	Contract Milestone	Date
1	Commencement of Work	15-05-2019
2	Completion of Work	30-06-2019

NOTE:-

- Numbers of days are continuous days (i.e. Inclusive of all public holidays, Sunday etc.) from the date of issuance of Notice of Award/ Contract.

NOMINATED SUBCONTRACTOR shall give GENERAL CONTRACTOR full information in advance as to its plans for performing each part of the Work. If at any time, NOMINATED SUBCONTRACTOR's actual progress is inadequate to meet the requirements of this contract, GENERAL CONTRACTOR may notify NOMINATED SUBCONTRACTOR to take such steps as may be necessary to improve its progress. If, within a reasonable period as determined by GENERAL CONTRACTOR, NOMINATED SUBCONTRACTOR does not improve performance to meet the Contract Milestones set forth above, GENERAL CONTRACTOR may require an increase in NOMINATED SUBCONTRACTOR's labour force, the number of shifts, overtime operations, additional days of work per week, expedited shipment(s) of equipment and materials, and an increase in the amount of construction plant and equipment, all without additional cost to GENERAL CONTRACTOR. Neither such notice nor GENERAL CONTRACTOR's failure to issue such notice shall relieve NOMINATED SUBCONTRACTOR of its obligation to achieve the quality of work and rate of progress required by this contract. Noncompliance with GENERAL CONTRACTOR's instructions shall be grounds for GENERAL CONTRACTOR's determination that NOMINATED SUBCONTRACTOR is not executing the Work with such diligence as will assure completion within the times specified. Upon such determination, GENERAL CONTRACTOR may terminate this Contract pursuant to Clause [Termination] of General Condition- Annexure-2

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10. CONTRACT SCHEDULE

The NOMINATED SUBCONTRACTOR shall, within **Seven (07)** days of the award of this Contract and before the first progress payment is made, submit to the GENERAL CONTRACTOR for its written approval, a contract schedule having due regard to and to achieve the Contract Milestones, in the manner prescribed by the GENERAL CONTRACTOR. Upon approval of the contract schedule by the GENERAL CONTRACTOR the same shall form part of this Contract. The term "Contract Schedule" shall mean the contract schedule so approved by the GENERAL CONTRACTOR.

The activity listing shall show the following information for each activity on the diagram:
Identification by node number;
Description of the task or event;
Duration;
Earliest and latest start and finish dates
In addition NOMINATED SUBCONTRACTOR shall also submit a complementary and detailed narrative description of its plan for performing the Work. The narrative description shall summarize equipment and personnel requirements by craft to complete a resource loaded schedule.

The NOMINATED SUBCONTRACTOR shall promptly inform the GENERAL CONTRACTOR of any proposed change in the schedule and narrative for its approval. Upon approval by the GENERAL CONTRACTOR in writing, the NOMINATED SUBCONTRACTOR shall furnish the GENERAL CONTRACTOR with a revised schedule and narrative within ten (10) days after approval by GENERAL CONTRACTOR of such change. The schedule and narrative shall be kept up to date, taking into account the actual Work progress and shall be revised, if necessary, every thirty (30) days. It is clarified that any revised schedule referred above shall not entitle the NOMINATED SUBCONTRACTOR to any relief, including, increase in Contract Price or extension in time schedule for performance of the Contract.

During the performance of the Work, the NOMINATED SUBCONTRACTOR shall submit to the GENERAL CONTRACTOR periodic progress reports at the time and in the manner as may be prescribed by the GENERAL CONTRACTOR.

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- **EXPEDITING**:

  If, during the progress of the Work, NOMINATED SUBCONTRACTOR fails to meet the approved Schedule, upon GENERAL CONTRACTOR's request, NOMINATED SUBCONTRACTOR shall submit the revised Schedule and methodology within 2 days from such request to meet the Contract milestones. NOMINATED SUBCONTRACTOR shall be responsible to mobilize additional resources such as men, materials and equipment's to ensure proper progress of the Work is maintained to achieve the Contract milestones.

  If NOMINATED SUBCONTRACTOR continues to fail to maintain the progress as per the Schedule requirements, GENERAL CONTRACTOR may deploy additional resources to supplement the progress at NOMINATED SUBCONTRACTOR's risk & cost. Such action of GENERAL CONTRACTOR shall not relive NOMINATED SUBCONTRACTOR of its any of the Contractual obligations.

11. ORGANISATION CHART:

NOMINATED SUBCONTRACTOR shall be responsible to provide its site specific Organizational chart with the name and designation of key personnel to be deployed at site during execution of the work. The said organization chart shall be reviewed by GENERAL CONTRACTOR; changes proposed by GENERAL CONTRACTOR, if any, shall be accordingly fulfilled by NOMINATED SUBCONTRACTOR. Prior approval of GENERAL CONTRACTOR to be obtained in writing for change/replacement of key persons.

12. TEMPORARY ACCESS AND HAUL ROADS

GENERAL CONTACTOR shall, at its expense, construct and maintain temporary access and haul roads as may be necessary for the proper performance of this contract. NOMINATED SUBCONTRACTOR shall be provided with a layout which shall show widths of roads, direction of traffic, curves, grades and related information in sufficient detail.

13. SAFETY, HEALTH AND SECURITY REQUIREMENTS

In the development and implementation of its Safety and Health Plan (S & H Plan) and performance of the Work, NOMINATED SUBCONTRACTOR shall conform and comply with GENERAL CONTRACTOR's Safety Guidelines" attached herewith (Annexure 5 – Contract Safety Document).

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In performance of the Work under this contract, NOMINATED SUBCONTRACTOR shall establish and maintain a security program, implementing and supplementing Project security requirements. This shall include a written Security Plan which shall be submitted to GENERAL CONTRACTOR for review and approval within thirty (30) days after contract award and in any event prior to commencing work at the Jobsite. Such program shall include:

1. Controlled access to office, warehouse, material and equipment sites.
2. Physical security of office, warehouse, material and equipment sites, to include periodic security checks of all work areas assigned to NOMINATED SUBCONTRACTOR.
3. Control of material and equipment packaging, transportation, and delivery to the Jobsite.
4. Accountability procedures for storage, requisition and issue of material and equipment.
5. Personnel security to include, but not limited to, compliance with Project work rules (access, badging, prohibited activities and items, etc.)
6. Communications security to include, but not limited to, use of radios, radio finders, beacons, etc.
7. Compliance with the Project Emergency Response Plan to include, but not limited to, emergency notification lists, personnel accountability procedures, etc.
8. Compliance with all Project security programs and the coordination measures, with GENERAL CONTRACTOR and others on the Jobsite, established for that purpose.
9. Prompt reporting of incidents of loss, theft or vandalism to GENERAL CONTRACTOR subsequently detailed and provided in writing.

NOMINATED SUBCONTRACTOR'S Security Plan shall be added as an appendix to its Project S & H Plan.

14. EXPLOSIVES- Not Applicable

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15. PERFORMANCE SECURITIES

NOMINATED SUBCONTRACTOR shall, within ten (10) days of the date of issuance of Work Order and prior to commencing the Work or entering the Jobsite, furnish to GENERAL CONTRACTOR an unconditional and irrevocable Bank Guarantee towards "Performance Security" from a Nationalized Bank /Scheduled Bank for performance of the Work under this Work Order. Such bank guarantee shall be for an amount equal to **Five Per cent (5%)** of the Work Order Value.

The Performance Security shall be effective commencing on the first day following the receipt of the Effective Date of this contract and be valid throughout the entire period of this contract. The Performance Security shall be released without interest on issuance of Final Acceptance Certificate and subject to ascertaining that GENERAL CONTRACTOR has no claim against NOMINATED SUBCONTRACTOR.

The above mentioned Bank Guarantee shall be issued only from a Nationalized Bank /Scheduled Bank in a form and content acceptable to GENERAL CONTRACTOR and shall be en-cashable at Mumbai only.

NOMINATED SUBCONTRACTOR shall vary the value of such securities as necessary and called for by the issuing bank to equal all Work Order changes made pursuant to the Clause [Changes and Consequential Adjustments] of General Conditions of Contract – Annexure - 2, including, but not limited to, increase or decrease in scope, value, and schedule acceleration or deceleration. The security as mentioned above shall have an initial validity in line with GENERAL CONTRACTOR's requirement (with a claim period of Ninety days). But in case the period of Work Order gets extended beyond the initial stipulated period, the NOMINATED SUBCONTRACTOR shall extend the validity of the said Performance Securities for the intended period / extended period of completion, as informed by the GENERAL CONTRACTOR. Failure to obtain above mentioned variation or extension and submit revised Bank Guarantee of an appropriate amount and validity or failure to extend the validity of the Performance Security in the manner stated above, at least seven (7) days prior to expiry of the then existing Performance Security shall be construed as an event of default and shall also entitle the GENERAL CONTRACTOR to invoke the then existing Performance Security in the manner stated in Clause [Event of Default and Consequences] General Conditions of Contract – Annexure - 2.

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16. MEASUREMENT FOR PAYMENT

The NOMINATED SUBCONTRACTOR shall use the English standard/metric (SI) system of measurement for all designs, specifications, drawings, plans and Work except as otherwise directed in writing by GENERAL CONTRACTOR. The quantities actually executed, in accordance with the Schedule of Quantities and prices Annexure-4, shall be considered for payment. These quantities shall be multiplied by the unit rates (item rates) and payable amount shall be worked out. Part rate for any item, if not defined in the Contract/Work Order shall not be permissible, unless suitable provision is made in Contract/Work Order by way of appropriate amendment.

For each part of the Work completed satisfactorily up to mutually agreed date of each month, the NOMINATED SUBCONTRACTOR and the GENERAL CONTRACTOR's representative shall jointly take the measurements and will sign off the measurements sheets. The Parties agree that no part of the Works shall be 'covered up' or put out of view without the approval of the GENERAL CONTRACTOR, the NOMINATED SUBCONTRACTOR shall afford full opportunity to the GENERAL CONTRACTOR to examine and measure any such part of the Works which is about to be covered up or put of view and to examine works before any part of the Works is placed thereon. Further, the NOMINATED SUBCONTRACTOR undertakes to conduct all measurements before 'covering up'.

The NOMINATED SUBCONTRACTOR shall give reasonable notice to the the GENERAL CONTRACTOR whenever any such part of the Works is ready for examination. The GENERAL CONTRACTOR shall, without unreasonable delay, unless they considers it unnecessary and advises the NOMINATED SUBCONTRACTOR accordingly, attend the Job Site for the purpose of examining and measuring such part of the Works. Where the Works involve more than one stage/process, the NOMINATED SUBCONTRACTOR shall notify the GENERAL CONTRACTOR when each stage/process is ready to enable inspection by the GENERAL CONTRACTOR's Representative.

It is clarified for removal of doubt that the aforesaid measurement by the NOMINATED SUBCONTRACTOR shall not include materials or equipment not incorporated into the Works. The quantity of Work to be paid for under any item for which a unit price is fixed shall be the number of units decided by the GENERAL CONTRACTOR in respect of which the Work has been satisfactorily completed in accordance with the provisions contained in

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Schedule of Quantities and Prices – Annexure - 4.

The NOMINATED SUBCONTRACTOR shall make all surveys necessary for determining / measuring all quantities of Work to be paid under this Contract. Copies of field notes, computations and other records made by NOMINATED SUBCONTRACTOR for the purpose of determining quantities shall be furnished to GENERAL CONTRACTOR upon request during joint measurement. The NOMINATED SUBCONTRACTOR shall notify the the GENERAL CONTRACTOR prior to the time such surveys are made. The GENERAL CONTRACTOR may at its sole discretion, witness and verify such surveys.

Measurements and computations shall be made by such methods as the GENERAL CONTRACTOR may consider appropriate for the kind of Work measured and the quantities of Work completed shall be calculated in compliance with the requirements of the item description as mentioned in the Schedule of Quantities and Prices – Annexure - 4. The dividing limits, lines or planes between adjacent items or classes of Work where not definitely indicated on the drawings or in the specifications shall be as determined by the GENERAL CONTRACTOR duly to be substantiated with relevant IS codes and industry practices.

Based on the above mentioned joint measurement, the NOMINATED SUBCONTRACTOR shall submit the monthly Running Account (R. A.) Bill in hard and soft copies along with [the abstract duly signed by the authorized representative of the NOMINATED SUBCONTRACTOR] by the 25th day of every month in acceptable Format by the GENERAL CONTRACTOR along with all required documents like but not limited to Tax Invoice, all applicable statutory compliance documents, etc., to enable the GENERAL CONTRACTOR to process the same for release of payment under Clause [Invoicing and Payment] of this Annexure-3. The Final Bill shall also be submitted by the NOMINATED SUBCONTRACTOR based on Joint Measurements in the same manner of the R .A. Bill as provided in this Clause.

17. INVOICING AND PAYMENT

a. Monthly Running Account Bills (R. A. Bill):

GENERAL CONTRACTOR shall make payment as per following:

NOMINATED SUBCONTRACTOR shall raise their Running Account (RA) Bills on monthly basis for the verification of GENERAL CONTRACTOR's Project in charge. GENERAL CONTRACTOR shall within Forty (40) Days from submission of the R.A. Bills with all the required documents, make payment equal to certified bill amounts of the said

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Running Account Bills (R.A .bills), subject to deduction of Retention Money (defined below), statutory deductions and other monies due and payable by the NOMINATED SUBCONTRACTOR to the GENERAL CONTRACTOR. Payment of each bill (R.A & final) shall be subject to statutory deductions and other with holdings, if any, towards pending submission of statutory documents as per GENERAL CONTRACTOR's defined policy.

Invoices shall be made out to "Larsen & Toubro Limited - L&T - Construction –Salsette 27 Project Site, Byculla, Mumbai", and delivered in 2 originals to the Authorized Representative. The invoices shall bear the number of Work Order.

NOMINATED SUBCONTRCTOR shall make all efforts to plan and procure the required materials not more than six weeks ahead of the installation date as per finalized schedule. Any deviation from this without prior approval of GENERAL CONTRACTOR may be a cause for rejection of such invoice.

Payments towards RA bills shall be made after making necessary deductions towards withheld for taxes, Retention, statutory deductions, etc., within Forty (40) days from the date of submission of corrected invoice.

All the running certified invoices of the NOMINATED SUBCONTRCTOR shall act as purely advances against work done and GENERAL CONTRACTOR reserves the right to do the scrutiny at any point of time for all the Payment invoices prior to final payment to be made to the NOMINATED SUBCONTRCTOR.

Final payment shall be made only after submission of all the measurements, duly certified by the EIC along with 'No-claim' certificate from the NOMINATED SUBCONTRCTOR. Subsequent to finalization of Final Bill NOMINATED SUBCONTRCTOR shall not raise any claim of whatsoever nature. GENERAL CONTRACTOR, under no circumstances, shall entertain any such supplementary/revised final bill and shall not be under any obligation to pay any amount claimed under said bills. Final Payment shall be released within 90 days from the date of issuance of Final Completion Certificate issued by the GENERAL CONTRACTOR, against the Final Bill of the NOMINATED SUBCONTRCTOR along with No-claim Certificate.

Deduction of Retention Money (defined below), statutory deductions and other monies due and payable by the NOMINATED SUBCONTRCTOR to the GENERAL

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CONTRACTOR shall be made from each bill. Payments against RA bills shall be released within Forty (40) days from submission of invoices by NOMINATED SUBCONTRACTOR.

Payments made by the GENERAL CONTRACTOR against any R.A. Bill shall not be deemed to indicate the GENERAL CONTRACTOR's acceptance, approval, consent or satisfaction of quantum or quality of any Work performed or part thereof. Any R.A. Bill given relating to works done or materials delivered may be modified or corrected by any subsequent R.A. Bill or by the Final Bill or otherwise or in accordance with sub clause (D) of this clause- Annexure – 3 - [Over Payment or Under Payment]. The GENERAL CONTRACTOR shall have a right to verify the R.A. Bills at any stage including after the Final Acceptance and raise any claims for corrections, rectifications, adjustments etc.

NOMINATED SUBCONTRCTOR has to ensure timely payment to all its subcontractors and indemnify GENERAL CONTRACTOR from affiliation of GENERAL CONTRACTOR's payments with subcontractors.

b. Retention Money:

An amount equivalent to Five Percent (5%) of the Gross Certified Value of work done shall be deducted from each Bill (Running / Final Bills) towards Retention Money, the said amount deducted towards Retention Money shall be returned without interest subject to successfully completion of defect liability period which shall be Twenty Four (24) months from the date of issuance of Final Acceptance Certificates and upon ascertaining that GENERAL CONTRACTOR has no claim against NOMINATED SUBCONTRCTOR.

The said Retention can be released on submission of Bank Guarantee for an equivalent amount in favour of GENERAL CONTRACTOR and in GENERAL CONTRACTOR's prescribed format (issued by a Nationalized Bank/Scheduled Bank, which shall be kept valid up to Twenty Four (24) months from the date of issuance of Final Acceptance Certificates

c. General provisions regarding payment

The GENERAL CONTRACTOR may, as a condition precedent to any payment, require the NOMINATED SUBCONTRCTOR to submit for itself, its subcontractors, immediate, remote, and all material suppliers, vendors, laborers and other parties acting through or under it, complete waivers and releases of all claims against the GENERAL

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CONTRACTOR arising under or by virtue of this Contract. Upon request, the NOMINATED CONTRACTOR shall in addition furnish acceptable evidence that all such claims have been satisfied.

Any amounts otherwise payable under this Contract may be withheld, in whole or in part, if:

a. Any claims are filed against NOMINATED SUBCONTRCTOR by the GENERAL CONTRACTOR or third parties (for which GENERAL CONTRACTOR is or may become liable); or
b. NOMINATED SUBCONTRCTOR is in material default of any condition in the Contract including, but not limited to, the schedule, quality assurance and health and safety requirements; or
c. NOMINATED SUBCONTRCTOR has not submitted any of the documents required to be submitted under the Contract including the following documents:
d. Schedules as defined in Clause [Contract Schedule] of this Annexure - 3; or
e. Proper insurance certificates, or not provided proper coverage or proof thereof, and
f. Required performance and payment bonds or GENERAL CONTRACTOR approved equivalent securities; or
g. Adjustments for any amounts due to the GENERAL CONTRACTOR or due to previous overpayment or adjustments identified during audit; or
h. Offsets in favor of GENERAL CONTRACTOR in other transactions are asserted.

The GENERAL CONTRACTOR may pay such withheld payments, if the NOMINATED SUBCONTRCTOR, satisfies all the conditions/requirements, due to which the GENERAL CONTRACTOR had withheld the payments.

If for any claims filed or threatened against the NOMINATED SUBCONTRCTOR connected with performance under this Contract the GENERAL CONTRACTOR is or may be entitled to withhold / recover any monies(e.g. unpaid withholding and back charges) and if such claims are not promptly settled by the NOMINATED SUBCONTRCTOR after receipt of written notice from GENERAL CONTRACTOR to do so, the GENERAL CONTRACTOR may settle such claims and deduct all costs in connection with such settlement from withheld payments or other monies due, or which may become due, to the NOMINATED SUBCONTRCTOR. If the amount of such withheld payment or other

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monies due to the NOMINATED SUBCONTRCTOR under this Contract is insufficient to meet such costs, or if any claim against the NOMINATED SUBCONTRCTOR is discharged by the GENERAL CONTRACTOR after final payment is made, the NOMINATED SUBCONTRCTOR shall forthwith pay to the GENERAL CONTRACTOR all costs, expenses, charges, losses incurred thereby regardless of when such claim arose or whether such claim imposed a lien upon the Project or the real property upon which the Project is situated. Without prejudice to the other rights of the GENERAL CONTRACTOR under this Contract, the in such cases, the GENERAL CONTRACTOR shall also be entitled to invoke the Performance Security to recover its dues in accordance with the provisions of [Event of Default and Consequences] of General Condition- Annexure - 2.

In the event a lien is claimed on the Project or the Job Site in any manner, the NOMINATED SUBCONTRCTOR shall promptly remove the lien, or see that it is removed or shall furnish a security to the GENERAL CONTRACTOR for the full amount thereof within seven (7) days of notice by the GENERAL CONTRACTOR. Upon the NOMINATED SUBCONTRCTOR's failure to promptly comply with the foregoing requirements, the GENERAL CONTRACTOR may remove such liens at the cost and consequences of the NOMINATED SUBCONTRCTOR. The NOMINATED SUBCONTRCTOR shall reimburse to the GENERAL CONTRACTOR all costs, charges, expenses (incurred or suffered) in connection with defending such claims/ the removal of such liens and the GENERAL CONTRACTOR may deduct such costs from payments or other monies due, or which may become due, to the NOMINATED SUBCONTRCTOR.

The GENERAL CONTRACTOR may, within sixty (60) days following final acceptance of the Work by the GENERAL CONTRACTOR and after submittal of final bill, pay to NOMINATED SUBCONTRCTOR, the amount then remaining due (final payment). Provided that the NOMINATED SUBCONTRCTOR shall have furnished to the GENERAL CONTRACTOR for itself, its subcontractors, immediate and remote, and all material suppliers, vendors, laborers and other parties acting through or under it, waivers and releases of all claims against the GENERAL CONTRACTOR arising under or by virtue of this Contract, except such claims, if any, as may with the consent of the GENERAL CONTRACTOR be specifically excepted by the NOMINATED SUBCONTRCTOR from the operation of the release in stated amounts to be set forth therein.

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No payments of invoices /bills or portions thereof shall at any time constitute approval or acceptance of any Work under this Contract, nor be considered a waiver by the GENERAL CONTRACTOR of any of the terms of this Contract. However, title to all equipment and materials which has vested in GENERAL CONTRACTOR pursuant to Clause [Title And Risk Of Loss] of General Condition- Annexure - 2 shall not be part of NOMINATED SUBCONTRCTOR's property or estate, in the event the NOMINATED SUBCONTRCTOR is adjudged bankrupt or makes a general assignment for the benefit of creditors, or if a receiver is appointed on account of the NOMINATED SUBCONTRCTOR's insolvency, or if all or any portion of this Contract is terminated.

The NOMINATED SUBCONTRCTOR shall submit all invoices / bills in original and two (2) copies along with the soft copy to:

The Project Manager,

Larsen & Toubro Limited - L&T - Construction – Peninsula's Salsette 27 Project Site,

The New Great Eastern Mills, Dr Ambedkar Road, Near Rani Baug, Byculla, Mumbai – 400027

Attention: Mr. Satish PR (Project Manager-L&T Construction)

Reference: Designing, Providing, fabricating & fixing Motorised GI Rolling Shutter Works at Public Parking Lot at Salsette 27, Mumbai

d. Over Payment and Under Payment :

Whenever any Claim for the payment of a sum by the GENERAL CONTRACTOR arises out of or under this Contract, against the NOMINATED SUBCONTRACTOR, the same may be deducted by the GENERAL CONTRACTOR from any sum then due or which at any time thereafter may become due to the NOMINATED SUBCONTRACTOR under this Contract and failing that from the NOMINATED SUBCONTRACTOR's Performance Guarantee (by en-cashing the Bank Guarantee) / Retention Money / Advance Guarantee (by en-cashing the Bank Guarantee), if applicable or any other security given by the NOMINATED SUBCONTRACTOR hereunder, or the NOMINATED SUBCONTRACTOR shall pay the claim on demand.

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The GENERAL CONTRACTOR reserves the right to carry out post payment audit and technical examination of the Final Bill including all supporting vouchers, abstracts etc during the Defects Liability Period.

If as a result of such audit and technical examination, any over payment is discovered in respect of any work done by the NOMINATED SUBCONTRACTOR under the Contract, it shall be recovered by the GENERAL CONTRACTOR from the NOMINATED SUBCONTRACTOR by any or all of the means prescribed above. If underpayment is discovered, payment shall be duly made by the GENERAL CONTRACTOR to the NOMINATED SUBCONTRACTOR.

The period to adjust for the overpayment or the underpayment by the GENERAL CONTRACTOR shall not extend beyond the period of One (1) year from the date of the payment of the Final Bill

18. PRICING OF ADJUSTMENTS

When costs are a factor in any determination of a contract adjustment pursuant to the above mentioned Clause "Changes and Consequential Adjustments "of General Condition Annexure-2, or any other provision of this contract, such costs, upward or downward, shall be proposed by NOMINATED SUBCONTRACTOR in one of the following methods, listed in order of preference.

A. Contract unit or lump sum prices, if applicable,

Rates for the extra/deviated items shall be derived from the existing unit or lump sum prices of the Contract whenever applicable. A mark up for an equitable adjustment for the changes component shall be 10% (Ten Percent) excluding applicable tax but including overhead & profits of NOMINATED SUBCONTRACTOR, its lower tier contractors and/or piece rate workers as applicable. Material, labour and/or equipment components/coefficients, if any required for this purpose shall be as per CPWD. Applicable Taxes shall be separately payable as applicable for extra/deviated items.

B. New unit or lump-sum prices; or

When unit or lump sum price cannot be derived from any existing item, a new unit rate shall be derived on the basis of analysis of rates considering following factors:-

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- Material and Labour Components as per Standard Norms as applicable.
- Equipment utilization as per Standard Norms as applicable.
- Material and equipment rental rates as per prevailing market rates.
- 10% towards overhead and profits.
- Taxes as per prevailing rates (without any markup) as applicable.

Labour component, Material consumption details, Equipment component for extra items to be verified and certified by GENERAL CONTRACTOR, while submitting for claim.

C. Reimbursement of cost in accordance with the following provisions:

a. Direct Labor Costs. Charges for labor furnished and used by NOMINATED SUBCONTRACTOR shall be allowable for all manual classifications up to and including foremen. Charges shall not be included for superintendents, assistant superintendents, general foremen, surveyors, office personnel, timekeepers and maintenance mechanics. The time charged to changes shall be subject to the daily approval of GENERAL CONTRACTOR and no charges shall be accepted unless evidence of such approval is submitted by NOMINATED SUBCONTRACTOR with its billing. Labor rates used to calculate the costs shall be those rates in effect during accomplishment of the changes.

Direct labor costs shall include, in addition to direct payroll costs, payroll taxes and insurance, vacation allowance, subsistence, travel time, overtime premium, and any other payroll additives required to be paid by NOMINATED SUBCONTRACTOR by law or labor agreement(s), e.g. Project Agreement, collective bargaining agreement(s), etc. Copies of certified pertinent payrolls shall be submitted to GENERAL CONTRACTOR.

b. Equipment Costs. Charges shall be allowable for the rental and operation of all construction and automotive equipment furnished and used by NOMINATED SUBCONTRACTOR, except for equipment or tools with a new cost at point of origin of Rs. 10,000 or less each.

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Equipment time charged to changes will be subject to daily approval of GENERAL CONTRACTOR and no charges will be accepted unless evidence of such approval is submitted with NOMINATED SUBCONTRACTOR's billing.

The equipment rental and operation rates shall include costs for rental, fuel, oil, grease, repair parts, service and maintenance of any kind, and necessary attachments. Such charges do not include costs for operating labor and for transportation to and from the location of the changes.

If this contract contains equipment rental rates, these rates shall apply to NOMINATED SUBCONTRACTOR's equipment used for changes. When equipment is used for changes, which does not reasonably resemble any of the equipment having rental rates incorporated into this contract, the rental rate shall be determined and agreed upon in an amendment to this contract.

If NOMINATED SUBCONTRACTOR owned equipment is not available and equipment is rented from outside sources, charges will be computed on the basis of actual invoice cost. Rental rates for non-owned equipment must be approved in advance by GENERAL CONTRACTOR.

When the operated use of equipment is infrequent and, as determined by GENERAL CONTRACTOR, such equipment need not remain at the site of the work continuously, charges shall be limited to actual hours of use. Equipment not operating but retained at the location of changes at GENERAL CONTRACTOR's direction shall be charged at the standby rate.

Transportation costs for bringing equipment to the Jobsite exclusively for cost reimbursable work, and for returning such equipment to the point of origin, will be allowable on the basis of invoices, provided that prior written approval has been given to NOMINATED SUBCONTRACTOR by GENERAL CONTRACTOR.

c. Material Costs. Charges for the cost of materials furnished by NOMINATED SUBCONTRACTOR for use in performing any changes shall be allowable, provided such furnishing and use was as specifically authorized in an amendment to this contract and actual use is verified by GENERAL CONTRACTOR. Charges must be the net cost to NOMINATED SUBCONTRACTOR delivered at the Jobsite

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and supplier's invoice must accompany the billing together with verification by GENERAL CONTRACTOR of use of such materials.

d. Subcontract and Outside Service Costs. Charges for work subcontracted by NOMINATED SUBCONTRACTOR in the performance or completion of the changes will be allowed only when both the lower-tier subcontractor and the terms of payment to such lower-tier subcontractor have been approved in writing by GENERAL CONTRACTOR before NOMINATED SUBCONTRACTOR starts to work on the changes. Such charges will be allowed at net cost to NOMINATED SUBCONTRACTOR, plus five percent (5%) for overhead and profit. Lower-tier subcontractor's invoice shall accompany NOMINATED SUBCONTRACTOR's billing together with verification by GENERAL CONTRACTOR of completed work.

e. Tools, Supplies, Overhead, Supervision and Profit. Charges will be allowable for tools and equipment with a new cost of Rs. 1,00,000 or less each and for supplies, overhead, supervision and profit in the amount of the following percentage of the total direct labor costs and material costs, as defined in (a) and (c) above:

- Ten percent (10%) when the specific change is less than Rs. 1,00,000.
- Five percent (5%) when the specific change is Rs. 1,00,000 or over.

f. Taxes duties and similar charges which NOMINATED SUBCONTRACTOR was required to pay for contract adjustment shall be reimbursed to NOMINATED SUBCONTRACTOR at cost and without any mark-up.

19. COMPONENT WARRANTIES

In addition to the General Condition titled "WARRANTY" NOMINATED SUBCONTRACTOR shall obtain or provide, for the benefit of GENERAL CONTRACTOR, warranties or guarantees for the equipment, materials and work furnished by suppliers and subcontractors of any tier. Such warranties or guarantees are to run for the period set forth in the applicable specification of this contract or, when not specified, that period customarily provided by the supplier. NOMINATED SUBCONTRACTOR shall use its best efforts to enforce such lower-tier warranties or guarantees on its own behalf or, if requested by

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GENERAL CONTRACTOR. NOMINATED SUBCONTRACTOR shall provide warranty documentation by final acceptance or as otherwise required by this contract.

In case the Guarantee / Warranty Period for any particular item / Work is more than the stipulated Warranty Period, the NOMINATED SUBCONTRACTOR in such case shall be liable to carry out required rectification of any defect up to the completion of such Guarantee / Warranty Period for that particular item / Work without any financial implication to the GENERAL CONTRACTOR. If such defect leads to any damage to other Works (which may or may not be covered under the Guarantee/Warranty period), the NOMINATED SUBCONTRACTOR shall also make the same good at his own cost.

20. GUARANTEE:

The NOMINATED SUBCONTRACTOR shall guarantee the work performed under the scope of this Work Order i.e. Motorized Rolling Shutter Work on non-judicial stamp paper of Rs. 500/- in a form and content approved by the GENERAL CONTRACTOR for a period of Five (05) years. In this period NOMINATED SUBCONTRACTOR shall attend to and rectify all complaints without causing any inconvenience to the GENERAL CONTRACTOR. The cost of stamp paper shall be to the NOMINATED SUBCONTRACTOR's account. If at any time during the guarantee period, the GENERAL CONTRACTOR discovers any defect in the design, equipment, materials, or workmanship or Work or any other breach of guarantee, the GENERAL CONTRACTOR may issue a written notice to the NOMINATED SUBCONTRACTOR, intimating the NOMINATED SUBCONTRACTOR of such defect/breach and calling upon the NOMINATED SUBCONTRACTOR to rectify the said defect, to the satisfaction of the GENERAL CONTRACTOR, within specific period. If the NOMINATED SUBCONTRACTOR fail to make the defects good in the reasonable time then GENERAL CONTRACTOR may make the defects good through another agency at the risk & cost of the NOMINATED SUBCONTRACTOR and shall be deducted from any payment due or becoming due to the NOMINATED SUBCONTRACTOR. The GENERAL CONTRACTOR shall be entitled to directly adjust and appropriate the Retention Money or part thereof in accordance with the provisions of Contract, including without limitation, towards costs or expenses of any repairs or replacements necessitated due to defective work carried out by the NOMINATED SUBCONTRACTOR or acts, omissions, delays, negligence or failure by the CONTRACTOR.

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21. APPLICABLE LAW

This contract shall be interpreted under the law of India, Mumbai Jurisdiction.

22. MEASUREMENT SYSTEM

NOMINATED SUBCONTRACTOR shall use the English Standard/Metric (SI) system of measurement for all designs, specifications, drawings, plans and work except as otherwise directed in writing by GENERAL CONTRACTOR

23. ARBITRATION

If any dispute or difference arises out of or relates to this contract whether during the progress of the Work or after its completion or whether before or after the termination, abandonment or breach of the contract and such dispute or difference cannot be resolved by NOMINATED SUBCONTRACTOR and GENERAL CONTRACTOR, either party shall, within thirty (30) days, give the other notice in writing of the existence of such dispute, specifying its nature and the point at issue. The notice shall also include a detailed description of the facts of the dispute with relevant dates, names of personnel involved, references to relevant documentation (with copies attached), the pertinent contract provision(s), and a statement of contentions and conclusions for the financial implications to other party.

Upon providing such notice the parties shall first endeavor to settle the dispute or difference in an amicable manner through direct discussions between Senior Management of the GENERAL CONTRACTOR and NOMINATED SUBCONTRACTOR. Upon such direct discussions if either party believes, for any reason whatsoever, that a satisfactory resolution of the matter cannot be reached either by mutual discussions & clarifications and negotiations or by ADR process, it may give a written notice of that belief to the other party and proceed to arbitration in the manner hereinafter provided.

The arbitration shall be conducted by three arbitrators, one each to be nominated by NOMINATED SUBCONTRACTOR and GENERAL CONTRACTOR, and the third to be appointed by these two arbitrators.

The arbitration shall be conducted in accordance with the provisions of the Indian Arbitration (and Conciliation) Act of 1996, Indian Arbitration and Conciliation (Amendment) ACT of 2015 or any statutory modification thereof. Unless otherwise agreed by the parties, the venue of arbitration shall be Mumbai.

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In the event of the arbitrator selected by either GENERAL CONTRACTOR or NOMINATED SUBCONTRACTOR dying, neglecting, resigning or being unable to act for any reason, the party concerned may nominate another arbitrator in place of the outgoing arbitrator.

The arbitrators shall have, in relation to the arbitration proceeding, the power to give interim orders, awards, injunctions and directions.

Neither GENERAL CONTRACTOR nor NOMINATED SUBCONTRACTOR shall be limited in the proceedings before such arbitrators to the evidence or arguments presented for the initial discussions between Senior Management of GENERAL CONTRACTOR and NOMINATED SUBCONTRACTOR. The decision of the majority of the arbitrators shall be final and binding upon the parties. The award will be a speaking award. The expense of the arbitration shall be paid as may be determined by the arbitrators. The arbitrators may, from time to time, with the consent of all the parties extend the time for making the award.

It is distinctly agreed and understood that the existence of any claim or dispute will not entitle the NOMINATED SUBCONTRACTOR to stop or delay the Work and NOMINATED SUBCONTRACTOR shall continue to perform the Work in accordance with the provisions of this contract and in accordance with GENERAL CONTRACTOR's instructions with all due diligence and dispatch and perform all its obligations under the contract.

24. LIQUIDATED DAMAGES

The parties hereby agree that the damages which GENERAL CONTRACTOR will sustain as a result of NOMINTATED SUBCONTRACTOR's failure to meet key Work Order Milestones are difficult or impossible to determine with certainty and, therefore, have in good faith estimated as fair compensation (and not as a penalty) the liquidated damages as set forth below.

If the NOMINATED SUB CONTRACTOR fails to deliver the equipment or materials or perform the Work within the time frames specified in the Contract for the Contract Milestones or any extensions evidenced by a duly executed Contract amendment, the NOMINATED SUB CONTRACTOR shall pay to GENERAL CONTRACTOR as fixed liquidated damages for each week of delay the sum(s) specified below, which amounts shall be independently calculated for each Work Order Milestone indicated and the said Liquidated damages shall later be allied with Intermediate milestone set right at the time of

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finalization of detailed work schedule as detailed under Clause [Contract Schedule] of this Annexure-3:

Sr. No.	Contract Milestones	Liquidated Damages
1.	Completion of all Works	0.5 % per week of total Contract Price up to a maximum of 5% of the total Contract Price.

The application of liquidated damages shall not effect a change in the Contract Milestones or relieve NOMINATED SUBCONTRACTOR of its obligation to improve its progress, pursuant to the Condition of particular Application titled "COMMENCEMENT, PROGRESS AND COMPLETION OF THE WORK," to achieve or mitigate the failure to achieve any Contract Milestone.

Payments of liquidated damages shall become due immediately upon failure to achieve a Contract Milestone. GENERAL CONTRACTOR shall be entitled to withhold from payments due, offset against other obligations, deduct from Retainage, and draw down on letter(s) of credit or performance securities any and all liquidated damages due from NOMINATED SUBCONTRACTOR.

The cumulative total of all liquidated damages will not exceed **five percent (5%)** of the total Contract Price.

It is clarified that the above damages are only in respect of delay in meeting a Contract Milestones and contract schedule and not for any other failure and the same is in addition to other rights and remedies of the GENERAL CONTRACTOR in law, equity or this contract. In case of any other failure of the NOMINATED SUBCONTRACTOR, the GENERAL CONTRCTOR reserves its rights to seek other remedies available under this Contract, law or equity.

Nothing in this clause shall operate to restrict any other rights and remedies available to GENERAL CONTRACTOR at law or equity or under this contract.

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25. NON-EXCLUSIVE RIGHT

NOMINATED SUBCONTRACTOR has no exclusive right to provide the Work required within this contract. GENERAL CONTRACTOR may at its sole discretion contract with others to perform the same duties or any part of the Work.

26. DELAY AND EXTENSION OF TIME

NOMINATED SUBCONTRACTOR shall (I) notify GENERAL CONTRACTOR as soon as reasonably practicable upon the occurrence of an event justifying a claim for (x) either an extension of the NOMINATED SUBCONTRACTOR's time to perform obligations under the Contract and (II) shall submit to GENERAL CONTRACTOR any claim for either an extension of time and/or increase in price related to that event along with full documentation supporting such claim within Fifteen (15) days of the occurrence of such an event.

Notwithstanding the foregoing, NOMINATED SUBCONTRACTOR shall not be entitled to any extension of time and/or increase in price if the cause of the delay is attributable to any negligence, default or improper conduct by NOMINATED SUBCONTRACTOR and its lower-tier subcontractors / suppliers etc.

27. TAXES

The Contract Price set forth in Schedule of Quantities and Prices – Annexure - 4 includes all taxes and duties payable by NOMINATED SUBCONTRACTOR in respect of all the materials purchased, manpower incurred, accessories purchased, tools & tackles, equipment's, machinery required, etc. for successful execution of Work in entirety.

If applicable, GENERAL CONTRCATOR will deduct the necessary taxes from the payments to be made to the NOMINATED SUBCONTRACTOR or otherwise as per prevailing laws and will issue the necessary certificate to that effect.

28. PRE DELIVERY INSPECTION

Inspection of the equipment shall be carried out by the GENERAL CONTRACTOR for confirmation of the Technical Specifications. The NOMINATED SUBCONTRACTOR shall prepare the detail procedure in line with GENERAL CONTRACTOR's approved drawings to be adopted for carrying out the inspection tests at their / their vendors' factory premises. This will be submitted to the GENERAL CONTRACTOR for approval. The equipment shall not be dispatched till the GENERAL CONTRACTOR gives dispatch instruction in writing. During

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the pre-delivery inspection, all test certificates for the relevant equipment shall be furnished by the NOMINATED SUBCONTRACTOR.

All tests to be performed during manufacture, fabrication and inspection shall be agreed with the GENERAL CONTRACTOR prior to commencement of the Work. The NOMINATED SUBCONTRACTOR shall prepare the details of the schedule and submit these to the GENERAL CONTRACTOR Design Consultant for approval.

A minimum Seven (7) days' notice of the readiness of equipment for test or inspection shall be provided to the GENERAL CONTRACTOR by the NOMINATED SUBCONTRACTOR.

Further, if required, equipment may be subject to routine performance tests at the Manufacturer's Works in accordance with the relevant ANSI, ASME, ASTM, BIS standard including operating tests of complete assemblies to ensure correct operation of apparatus and components.

No plant shall be packed, prepared for shipment, or dismantled for the purpose of packing for shipment equipment, unless it has been satisfactorily inspected, all tests called for have been successfully carried in the presence of the GENERAL CONTRACTOR or approved for shipment, or alternatively inspection has been waived.

GENERAL CONTRACTOR reserves the right to visit the manufacturer's Works at any reasonable time during fabrication of equipment and to familiarize himself with the progress made and the quantity of Work to date.

On completion of any tests, duplicate sets of principal test records, test certificates and correction and performance curves shall be supplied to the GENERAL CONTRACTOR.

These test records, certificates and performance curves shall be supplied for all tests, whether or not they have been witnessed by the GENERAL CONTRACTOR or not. The information given on such test certificates and curves shall be sufficient to identify the material or equipment to which the certificate refers and should also bear the Contract reference title. When all equipment have been tested, the test certificates from all Works and site tests shall be compiled by the NOMINATED SUBCONTRACTOR into volumes and bound in approved form complete with index and four copies of each volume shall be supplied to the GENERAL CONTRACTOR.

29. DEFECTS LIABILITY PERIOD:

The Defects Liability Period shall commence from the date of issuance of Final Acceptance Certificate by GENERAL CONTRACTOR and shall be of Twenty Four (24) months, any defects or faults which may appear or be noticed within the Defect Liability Period, and

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arising in the opinion of the Engineer from materials or workmanship etc., not having in accordance with the Contract, shall upon the direction in writing of the Engineer and within such reasonable time as shall be specified therein, be amended and made good by the NOMINATED SUBCONTRACTOR at his own cost. If the NOMINATED SUBCONTRACTOR fail to make the defects good in the reasonable time then GENERAL CONTRACTOR may make the defects good through another agency at the risk & cost of the NOMINATED SUBCONTRACTOR and shall be deducted from any payment due or becoming due to the NOMINATED SUBCONTRACTOR.

The Retention Money deducted from each bill and shall be returned without interest to NOMINATED SUBCONTRACTOR after successful completion of Defects Liability Period.

NOMINATED SUBCONTRACTOR shall deploy full time Engineer, supervisors, required if any, Electrician Operators and helpers to be deployed on site till satisfactory completion of defects liability period, Retention shall be released only after satisfactory completion of defect liability period.

30. EXTRA ITEMS:

a) The rate of extra or additional items of work shall be derived from the rates of items of similar nature in the Schedule of Quantities and Prices specified in Annexure – 4 , and in the absence of any such items of similar nature the rates for such extra items shall be derived by rate analysis of such items based on the actual cost of the materials in the market (as per the relevant purchase bills including all taxes, Transport, Loading & unloading bills submitted by the NOMINATED SUBCONTRACTOR and duly authenticated by GENERAL CONTRACTOR) and actual Labour cost plus additional 2% of materials & labours cost towards plants, machinery & tools. A maximum of 5% NOMINATED SUBCONTRACTOR wastage of materials cost (Depending on the type of material percentage of wastage shall be mutually decided by GENERAL CONTRACTOR) shall be included in the direct cost and 15% of the total cost (Direct cost) shall be paid towards supervision, Overheads, incidental charges & Profits etc. Only GST shall be paid extra. NOMINATED SUBCONTRACTOR shall submit all justified details substantiating extra item within 10 days from identification of such items.

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b) In case of work involving labour job, the NOMINATED SUBCONTRACTOR shall be paid actual cost of labours and 15% towards supervision, incidental charges & profits. GST shall be paid extra.

c) In case of work involving labours & machineries & sundry materials the NOMINATED SUBCONTRACTOR shall be paid actual cost of labour & 2% of Labour cost towards Plant & machinery's and 15% of the total cost towards cost for supervision, incidental charges & profits etc. GST shall be paid extra.

d) For such extra items as stated above, the NOMINATED SUBCONTRACTOR shall obtain necessary prior approval from Engineer- in-charge (EIC) before execution of work & all the item rates shall be finalized prior to actual execution of work. In case of free supply of materials by the GENERAL CONTRACTOR, NOMINATED SUBCONTRACTOR shall not be entitled to claim profit over materials. Handling charges for free supply materials shall be included in the Labour cost.

e) No Escalation shall be payable for Extra items.

31. QUANTITY VARIATION

Quantities indicated in the "Schedule of Quantities and Prices – Annexure - 4" are approximate and subject to variations up to +/- 15% on overall Contract value, no claim shall be made for deficiency or over-run, actual or relative . NOMINATED SUBCONTRACTOR shall be entitled for revision of rates, as mutually agreed for an increase or decrease beyond +/- 15% variation in original contract value. Variation of quantities beyond agreed percentage to be correlated with duration of work as per mutual agreement.

Payment will be made for the actual quantities of each item incorporated in the Work in accordance with the Contract requirements based on the unit prices established in the Schedule of Quantities and Prices – Annexure - 4, unless quantities are beyond allowed +/- 15% with reference to overall Contract Sum (Work order Sum) which includes defined Tentative (provisional) sum towards nominated sub-contractor packages.

If the variation range stated above is exceeded, an equitable adjustment shall be made pursuant to the Annexure – 2 - General Conditions titled "CHANGES" and Annexure – 3 - Condition of particular application titled "PRICING OF ADJUSTMENTS".

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32. SCOPE OF WORK:

All items of work under contract shall be executed strictly in accordance with the description of the item in the schedule of quantities, relevant drawings and specifications read in conjunction with the appropriate Indian standard Specification and conditions of the contract.

Supply of all supervision, materials & consumables, fixing materials, accessories, appliances, tools, plant, equipment, transport, labour and incidentals required and completion of the work called for in the item and as per specifications and drawings completely.

NOMINATED SUBCONTRACTOR shall examine all drawings and specifications, working space, storage space, access facilities and all other conditions pertaining to the site, relating to the conduct of his operations.

Complete all installation, pre operational and pre-commissioning testing and provide the check sheets as appropriate and as required by GENERAL CONTRACTOR

NOMINATED SUBCONTRACTOR shall protect the works and facilities while performing work.

NOMINATED SUBCONTRACTOR shall ensure to meet the schedule milestones, quality and safety requirements of all works as mentioned in Scope of Work.

NOMINATED SUBCONTRACTOR is to ensure the proper housekeeping of the site at all times as per the satisfaction of GENERAL CONTRACTOR so as to work in a very safe and clean manner.

NOMINATED SUBCONTRACTOR shall work in close coordination with GENERAL CONTRACTOR and shall attend various meetings to meet the schedule and quality requirements of the works.

NOMINATED SUBCONTRACTOR shall comply and monitor all systems requirements like ISO-9001 (Quality Management System), ISO-14001- (Environment Management System), OHSAH-18001 (Occupational health and safety assessment series) and SA-8000, Social accountability as per GENERAL CONTRACTOR requirements.

33. WORK INCLUDED:

NOMINATED SUBCONTRACTOR shall execute all works as described in 'Schedule of Quantities and Prices – Annexure-4' in conjunction with designs, drawings and technical specifications to meet the schedule and quality requirements of the work.

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CONTRACTOR shall submit his Construction Program within Seven (7) days of Award of Work/Notice describing in detail the Mobilization and setting up of Infrastructure facilities, CPM analysis and Bar Charts, Survey and layout and requirement of labour and equipment, performance of tests, Monitoring of Progress, Financial Planning, Quality plan including but not limited to Approved vendor list for various standard materials Field Laboratory setup, Approved External Laboratory Facility, Acceptance Criteria, Testing Frequencies, Calibrations, Control of Non-conformities, Details of Site Quality Records and formats.

NOMINATED SUBCONTRACTOR shall submit all necessary reports and data required for monitoring the progress and quality of works mentioned in Scope of Work.

NOMINATED SUBCONTRACTOR shall submit all necessary 'Shop drawings' for all the fabrication and other inlay works.

NOMINATED SUBCONTRACTOR shall submit all necessary 'As built drawings' for all works mentioned under Scope of Work.

NOMINATED SUBCONTRACTOR shall perform 'Site safety management and supervision'.

NOMINATED SUBCONTRACTOR shall construct labour camp with consent of GENERAL CONTRACTOR.

34. BATTERY LIMITS: Battery limits are within the plot boundary.

35. WORK BY OTHERS:

The NOMINATED SUBCONTRACTOR shall be responsible for coordinating his work activities with other Contractors who are working in the nearby areas.

36. SUPERVISION AND CO-ORDINATION

The NOMINATED SUBCONTRACTOR shall closely co-ordinate the performance of the work with GENERAL CONTRACTOR and other consultants and contractors as necessary to meet the schedule, quality & safety requirements of the work.

As required by GENERAL CONTRACTOR, NOMINATED SUBCONTRACTOR shall attend various meetings, site visits, etc. to meet the schedule, quality & safety requirements of the work.

37. COMPLETION AND HANDOVER:

NOMINATED SUBCONTRACTOR shall obtain inspection report, from the GENERAL CONTRACTOR before applying for the certification of completion of works. The work shall

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be deemed to be complete after the approval by GENERAL CONTRACTOR, verifying the executed work with the relevant detailed working drawings and data.

38. SPECIFICATION STANDARDS:

The following design/specification standards enlisted, but not limited to, are to be followed unless otherwise noted.

a. Technical specifications enclosed and marked as 'Specifications', shall be followed and shall form the part of contract.
b. BIS (Bureau of Indian Standards)
c. BS (British Standards)
d. ASTM
e. CPWD (Central Public Works Department)

39. SPECIAL INSTRUCTIONS FOR NOMINATED SUBCONTRACTOR:

The rate for each item of work included in the schedule of quantities shall unless expressly stated otherwise include cost of:

a. All materials, fixing materials, accessories, appliances, tools, plant, equipment, transport, labour and incidentals required and completion of the work called for in the item and as per specifications and drawings completely.
b. Wastage on materials and labour.
c. Rate shall include proper protection of finished and semi-finished works such as providing protection should be package specific.
d. Loading, transporting, unloading, handling / multiple handling, hoisting to all levels, setting, fitting and fixing in position, protecting, stacking of debris and all other labour necessary in and for the full and entire execution and to fully complete the job in accordance with the contract documents, good practice and recognized principles.
e. Cleaning and stacking of debris generated at job area after cleaning the floors etc., with water and removing all parts of stains by using any approved stain remover to the satisfaction of the GENERAL CONTRACTOR. Unless and until all the stains on floor, walls, ceilings, etc., are removed satisfactorily by the NOMINATED SUBCONTRACTOR, the work will not be certified complete. Rectification of damage(s) to Structure, flooring, gypsum etc., caused during the execution of work.
f. Liabilities, obligations, and risks arising out of conditions of contract.

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g. All requirements of specifications, whether such requirements are mentioned in the item or not. The specifications and drawings where available are to be read in conjunction to any part of the schedule of quantities and any work called for in one shall be taken as required for all.

h. In the event of conflict between schedule of quantities and other documents including the specifications the most stringent shall apply and the interpretation of GENERAL CONTRACTOR shall be final and binding.

i. The NOMINATED SUBCONTRACTOR shall be paid for the actual quantity of work executed by him in accordance with the drawings at the contract rates.

j. The rates shall be inclusive of site clearances required as per the site conditions and as mentioned in technical specifications.

40. INDEMNITY :

NOMINATED SUBCONTRACTOR hereby releases and shall indemnify, defend and hold harmless to GENERAL CONTRACTOR and their subsidiaries and affiliates and the officers, agents, employees, successors and assigns and authorized representatives of all the foregoing from and against any and all suits, actions, legal or administrative proceedings, claims, demands, damages, liabilities, interest, attorney's fees, costs, expenses, and losses of whatsoever kind or nature in connection with or incidental to the performance of this contract, whether arising before or after completion of the Work hereunder and in any manner directly or indirectly caused, occasioned, or contributed to in whole or in part, or claimed to be caused, occasioned or contributed to in whole or in part, by reason of any act, omission, fault or negligence whether active or passive of NOMINATED SUBCONTRACTOR, its lower-tier suppliers, subcontractors or of anyone acting under its direction or control or on its behalf.

The foregoing shall include, but is not limited to, indemnity for:

a) Property damage and injury to or death of any person, including employees of GENERAL CONTRACTOR or NOMINATED SUBCONTRACTOR.

b) The breach by NOMINATED SUBCONTRACTOR of any representation, warranty, covenant, or performance obligation of this contract.

NOMINATED SUBCONTRACTOR's aforesaid release, indemnity and hold harmless obligations, or portions or applications thereof, shall apply even in the event of the fault or negligence, whether active or passive, or strict liability of the parties released, indemnified or held harmless to the fullest extent permitted by law, but in no event shall

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they apply to liability caused by the willful misconduct or sole negligence of the party released, indemnified or held harmless.

41. PATENT AND INTELLECTUAL PROPERTY INDEMNITY

NOMINATED SUBCONTRACTOR hereby indemnifies and shall defend and hold harmless GENERAL CONTRACTOR and their representatives from and against any and all claims, actions, losses, damages, and expenses, including attorney's fees, arising from any claim, whether rightful or otherwise, that any concept, product, design, equipment, material, process, copyrighted material or confidential information, or any part thereof, furnished by NOMINATED SUBCONTRACTOR under this Work order constitutes an infringement of any patent or copyrighted material or a theft of trade secrets. If use of any part of such concept, product, design, equipment, material, process, copyrighted material or confidential information is limited or prohibited, NOMINATED SUBCONTRACTOR shall, at its sole expense, procure the necessary licenses to use the infringing or a modified but non-infringing concept, product, design, equipment, material, process, copyrighted material or confidential information or, with GENERAL CONTRACTOR's prior written approval, replace it with substantially equal but non-infringing concepts, products, designs, equipment, materials, processes, copyrighted material or confidential information; provided, however,

a) That any such substituted or modified concepts, products, designs, equipment, material, processes, copyrighted material or confidential information shall meet all the requirements and be subject to all the provisions of this Work order, and
b) That such replacement or modification shall not modify or relieve NOMINATED SUBCONTRACTOR of its obligations under this Work order.

The foregoing obligation shall not apply to any concept, product, design, equipment, material, process, copyrighted material or confidential information the detailed design of which (excluding rating and/or performance specifications) has been furnished in writing by GENERAL CONTRACTOR to NOMINATED SUBCONTRACTOR.

42. INTELLECTUAL PROPERTY RIGHT

a) All designs, drawings, specifications and other documents, including those in electronic form, prepared by NOMINATED SUBCONTRACTOR are instruments of service ("Instruments of Service") for the Project and are for GENERAL CONTRACTOR's use solely in connection with the Project. The NOMINATED SUBCONTRACTOR shall be deemed the authors and GENERAL CONTRACTOR of

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their Instruments of Services and shall retain all common law, statutory and other reserved rights, including copyrights. GENERAL CONTRACTOR shall advise their agents, employees, vendors and manufacturers of NOMINATED SUBCONTRACTOR's proprietary rights in such documents.

b) In consideration of the Fee, the NOMINATED SUBCONTRACTOR hereby grants to the GENERAL CONTRACTOR an exclusive, perpetual, royalty free and irrevocable license to reproduce NOMINATED SUBCONTRACTOR's Instruments of Service solely for purposes of further designing, constructing, using and maintaining the Project, provided that the GENERAL CONTRACTOR shall comply with all obligations, including timely payment of all compensation when due, under this Work Order. Except for the licenses granted in the previous sentence, no other license or right shall be deemed granted or implied under this Work Order. Except as permitted under this Work Order, NOMINATED SUBCONTRACTOR and GENERAL CONTRACTOR shall not assign, delegate, sublicense, pledge or otherwise transfer any license granted herein to another party without the prior written consent of the other Party. However, GENERAL CONTRACTOR shall be permitted to authorize Contractors, sub-subcontractors and material or equipment suppliers, appointed by GENERAL CONTRACTOR for accomplishment of the Project, to reproduce applicable portions of the Instruments of Service appropriate to and for use in their execution of the Work. Submission or distribution of Instruments of Service to meet official regulatory requirements or for similar purposes in connection with the Project is not to be construed as publication in derogation of the reserved rights of NOMINATED SUBCONTRACTOR.

c) The Instruments of Service shall not be used for other projects other that this Project without NOMINATED SUBCONTRACTOR's prior written consent. Any unauthorized use of the Instruments of Service shall be at the GENERAL CONTRACTOR's sole risk and without liability to NOMINATED SUBCONTRACTOR. GENERAL CONTRACTOR agrees that NOMINATED SUBCONTRACTOR will not have any liability for any revision or addition to, alteration or deviation from the Instruments of Service occurring subsequent to the Completion of Services under this Work Order or earlier termination in accordance with this Work Order.

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d) The NOMINATED SUBCONTRACTOR represents that no infringement of any Intellectual Property Rights of any kind will result from the performance of the Services and the delivery of the NOMINATED SUBCONTRACTOR's Documents.

e) The NOMINATED SUBCONTRACTOR shall not be liable for any use by GENERAL CONTRACTOR of any of the NOMINATED SUBCONTRACTOR's Documents for any purpose other than that for which the same were prepared by the NOMINATED SUBCONTRACTOR.

f) The NOMINATED SUBCONTRACTOR represents that the use of the NOMINATED SUBCONTRACTOR's Documents in accordance with this Work Order will not infringe the rights of any third party.

43. MISCELLANEOUS TERMS:

a. **RECTIFICATION OF QUALITY & SAFETY ISSUE**: NOMINATED SUBCONTRACTOR shall be liable to attend quality and safety issues on top priority post intimation of GENERAL CONTRACTOR. If the same is not attended maximum within Ten (10) days/ or as mutually agreed upon. GENERAL CONTRACTOR will be free to rectify the same and recover the cost actually incurred through external agency/ies from the NOMINATED SUBCONTRACTOR's forthcoming RA bills.

b. **APPROVAL OF NECESSARY SHOP DRAWINGS**: NOMINATED SUBCONTRACTOR shall submit shop drawings for Motorized Rolling Shutter Work in hard copy for GENERAL CONTRACTOR's approval. Submission of all necessary shop drawings should commence immediately after execution of Work order. Work can only be taken up only after receipt of written approval from GENERAL CONTRACTOR. NOMINATED SUBCONTRACTOR has to extend all his support as directed by GENERAL CONTRACTOR for early finalization of design.

c. **APPROVAL OF NECESSARY SAMPLES**: NOMINATED SUBCONTRACTOR shall submit samples of materials involved in production of Motorized Rolling Shutter as mentioned in Schedule of Quantities and Prices of Annexure-4 for verification and approval of GENERAL CONTRACTOR before taking up fabrication work. NOMINATED SUBCONTRACTOR shall be responsible for ensuring supply, fabrication and erection of Motorized Rolling Shutter as per approved sample.

d. **THIRD PARTY TESTING OF MATERIALS:** All the materials which shall be incorporated in works would be testified at site laboratory in line with Quality guidelines finalized in the Contract, in mutual agreement between the GENERAL

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CONTRACTOR and the NOMINATED SUBCONTRACTOR. However in order to have better precision, on random basis such material would be testified from outside laboratories (mutually agreed) as per instructions of GENERAL CONTRACTOR and no extra cost shall be paid to NOMINATED SUBCONTRACTOR under this account However, should the GENERAL CONTRACTOR wish to perform additional tests from outside laboratories/agencies which are over and beyond the agreed Quality requirements stipulated in the Contract, the same would be at extra cost and shall be borne by GENERAL CONTRACTOR.

e. NOMINATED SUBCONTRACTOR shall be responsible for complete stability and performance of Motorized Rolling Shutter system which compromise the whole assembly for the Guarantee Period of 5 years. CONTRACTOR shall considered pre tested system in terms of performance for required wind pressure and other applicable parameters of design.

f. **NON COMPREHENSIVE ANNUAL MAINTENANCE**:-
NOMINATED SUBCONTRACTOR hereby agreed to carry out non comprehensive Annual Maintenance after completion of 24 months i.e. defect liability period. Non Comprehensive Annual Maintenance Charges to be Rs. _____ /- per year, which includes four Site Visits to envisage the condition or as per requirement of GENERAL CONTRACTOR.

g. **CLEANING AND CARTING AWAY DEBRIS:** Refer responsibility matrix for details - Annexure – 3A

h. **SITE CLEANNESS**: - Refer responsibility matrix for details - Annexure – 3A

❖ **LIST OF ATTACHMENTS**

- Annexure – 3A Responsibility Matrix (Page 1 to 7)

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